

Conditions of Contract — Particular Conditions

Nandira River Bridge Project — Package NRB-4

Document Reference:	NRB4-PC-2020
Date:	05-Dec-2020
Contract No.:	NHIA/NRB4/CW/2020-01
From:	National Highways Infrastructure Authority (Employer)
To:	Meridian Engineering Consultants (Engineer); Sagara Constructions Pvt. Ltd. (Contractor)
Employer:	National Highways Infrastructure Authority
Engineer:	Meridian Engineering Consultants
Contractor:	Sagara Constructions Pvt. Ltd.

PREFATORY NOTE

These Particular Conditions amend and supplement the General Conditions of Contract in the respects, and to the extent, set out below. Where a provision of these Particular Conditions states that a Sub-Clause of the General Conditions is replaced, the replacement provision applies in place of the General Conditions provision for all purposes of the Contract. Where a provision states that a Sub-Clause is supplemented, the General Conditions provision continues to apply, read together with the additional matter set out below. Save as expressly stated in these Particular Conditions, the General Conditions remain of full force and effect. Any Sub-Clause not mentioned in these Particular Conditions is unamended.

PART A — AMENDMENTS RELATING TO CLAUSE 1 (GENERAL PROVISIONS)

A.1 — Notice Addresses and Communication Protocol

Sub-Clause 1.3 is supplemented as follows. For the purposes of the Contract, the addresses for service of notices are those stated in the Contract Data, or such substitute address as a Party or the Engineer may nominate by not less than seven days' prior written notice to the others. Each Party shall maintain a Site office at the Site at which notices addressed to that Party's Representative may be delivered by hand during normal working hours, in addition to any postal or electronic address nominated.

All correspondence of a technical or contractual nature, including but not limited to requests for information, submittals, notices of delay or claim, and Statements under Clause 14, shall be logged by the sender under a sequential reference number identifying the originating Party and the calendar year, and the recipient shall acknowledge receipt in writing, by return correspondence or by electronic mail, within two working days. Failure to acknowledge receipt does not affect the validity or effective date of a notice given in accordance with Sub-Clause 1.3, but a Party which repeatedly fails to acknowledge correspondence may be required by the Engineer to establish an alternative communication protocol.

Where these Particular Conditions or the Engineer require a document to be submitted in a stated number of copies, one copy shall in every case additionally be provided in electronic format unless the Engineer directs otherwise.

PART B — AMENDMENTS RELATING TO CLAUSE 3 (THE ENGINEER)

B.1 — Engineer's Delegated Representative

Sub-Clause 3.3 is supplemented as follows. The Engineer shall appoint, and notify to the Contractor before the Commencement Date, a Resident Engineer who shall be based at the Site and who is hereby delegated the Engineer's authority to give day-to-day instructions under Sub-Clause 3.3, to witness and approve measurement under Clause 14, and to grant or withhold consent at Hold Points under Part C.6 of these Particular Conditions. The Resident Engineer's authority does not extend to the determination of claims under Sub-Clause 20.1, the issue of Variation instructions with an estimated value exceeding the threshold stated in Part E.1 below, or any matter which the Engineer notifies the Contractor in writing is reserved to the Engineer personally.

Any instruction given by the Resident Engineer within the scope of the delegation recorded under this Part shall be treated as an instruction of the Engineer for all purposes of the Contract. The Engineer shall promptly notify the Contractor in writing of any replacement of the Resident Engineer, or any variation to the scope of the delegation described above.

B.2 — Monthly Progress Meetings

A progress meeting shall be held monthly, at the Site or at such other place as the Engineer may direct, on a date fixed by the Engineer's Representative and notified to the Contractor not less than five days in advance. The meeting shall be attended by the Contractor's Representative, or a duly authorised deputy, together with such other personnel of either Party as the matters on the agenda may require, and shall address progress against the current programme, outstanding instructions and submittals, anticipated delays, and any other matter either Party wishes to raise.

The Engineer shall issue minutes of each progress meeting within five working days of the meeting. A matter recorded in the minutes shall be treated as agreed unless a Party notifies the Engineer in writing, within five working days of issue, of a specific matter it disputes, in which case the minutes shall stand save as to the disputed matter, which shall be recorded as unresolved and addressed at the following meeting or by separate correspondence.

PART C — AMENDMENTS RELATING TO CLAUSE 4 (THE CONTRACTOR)

C.1 — Working Hours and Permitted Construction Windows

Sub-Clause 4.1 is supplemented as follows. Save as provided below, the Contractor shall carry out the Works only between 07:00 and 19:00 hours, Monday to Saturday inclusive. Work on Sundays, on public holidays observed at the Site, or outside the hours stated above, shall not be carried out without the prior written consent of the Engineer, which shall not be unreasonably withheld where the Contractor demonstrates a genuine operational need, but which the Engineer may make subject to conditions addressing noise, lighting, traffic management or other matters affecting persons or property in the vicinity of the Site.

C.2 — Site Access Restrictions

The Contractor's access to and use of the Site shall be confined to the areas identified for that purpose in the Drawings and shall at all times respect any right of way, easement, or restriction affecting land within or adjacent to the Site of which the Engineer notifies the Contractor. The Contractor shall maintain unobstructed access for the Suvarna District Water Resources Department and other authorities having a statutory right of access to the river and its banks, and shall not store materials, plant or spoil within any setback or buffer area identified in the Employer's Requirements without the Engineer's prior written consent.

C.3 — River Environmental Protection Requirements

The Contractor shall carry out the Works in accordance with the conditions attached to the environmental clearance issued in respect of the Works by the Vantara Environmental Protection Board, a copy of which has been provided to the Contractor, and any subsequent condition notified to the Contractor by the Engineer. Without limiting the foregoing, the Contractor shall install and maintain silt curtains and other turbidity control measures for the duration of any in-river work, shall not discharge fuel, oil, wash-water or other effluent into the river or its banks, and shall store fuel and hazardous materials only within bunded areas approved by the Engineer.

The Contractor shall engage, at its own cost, an environmental monitor to record water quality and other parameters required by the environmental clearance, and shall provide monitoring records to the Engineer on a monthly basis. Nothing in this Part C.3 affects the operation of the Monsoon Period restriction set out in Part D.1 below, which applies independently of, and in addition to, any environmental clearance condition.

C.4 — Utility Coordination Responsibilities

The Employer shall be responsible for procuring the relocation, diversion or protection of any utility, apparatus or installation shown on the Drawings as requiring relocation, save to the extent the Employer's Requirements state that responsibility rests with the Contractor. The Contractor shall coordinate the sequencing and programming of its own operations with the owners of any utility notified to the Contractor by the Engineer as crossing, adjacent to, or otherwise affecting the Site, and shall afford such owners reasonable access to carry out relocation or protective works.

If the Contractor encounters, in the course of executing the Works, a utility, apparatus or installation not shown on the Drawings and not otherwise disclosed to the Contractor in writing before the Commencement Date, the Contractor shall cease work in the immediate vicinity to the extent necessary for safety, shall notify the Engineer without delay, and shall thereafter comply with the Engineer's instructions as to how the Works are to proceed in that vicinity, without prejudice to any entitlement the Contractor may have under Sub-Clause 8.4 or Sub-Clause 20.1 in consequence.

C.5 — Key Personnel

The Contractor's Representative and the Engineer's Resident Engineer appointed under Part B.1 above are designated as Key Personnel for the purposes of the Contract. Neither Party shall replace or reassign its Key Personnel without giving the other not less than fourteen days' prior written notice, save in case of incapacity, resignation or other circumstance beyond that Party's reasonable control, in which case notice shall be given as soon as practicable. A replacement for a Key Personnel role shall have qualifications and experience reasonably equivalent to those of the person replaced, and the appointing Party shall provide the other Party with a curriculum vitae or equivalent summary of the replacement's qualifications upon request.

C.6 — Quality and Inspection Requirements

The Contractor shall carry out sampling and testing of materials and workmanship at the frequency, and to the standards, stated in the Employer's Requirements, using the independent testing laboratories nominated by the Engineer for that purpose. Test results shall be provided to the Engineer within five working days of the relevant test.

The Employer's Requirements identify certain stages of the Works as Hold Points, beyond which the Contractor shall not proceed without the prior written consent of the Engineer or the Resident Engineer. The

Contractor shall request such consent not less than two working days before the Hold Point is reached, providing such records and test results as are then available, and shall maintain a register of Hold Points reached, consents requested, and consents given or withheld, which shall be available for the Engineer's inspection at all times. Proceeding beyond a Hold Point without the consent required by this Part C.6 shall be at the Contractor's own risk as to any consequence of doing so.

C.7 — Record Keeping Requirements

The Contractor shall maintain, and make available to the Engineer on request, a Site diary recording daily weather conditions, labour and plant deployed, work carried out, and any event of note, and shall submit a Daily Progress Report to the Engineer in a form to be agreed within thirty days of the Commencement Date. The Contractor shall retain all records relevant to the execution of the Works, including but not limited to Site diaries, Daily Progress Reports, measurement records, test results and correspondence, for a period of not less than three years following the issue of the Performance Certificate, and shall provide copies to the Engineer upon reasonable request during that period.

C.8 — Performance Security

Sub-Clause 4.2 is supplemented as follows. The Contractor shall, within twenty-one days of the Commencement Date, provide the Employer with an unconditional and irrevocable bank guarantee, in a form approved by the Employer, in the amount stated in the Contract Data, being ten per cent of the Contract Amount. The Performance Security shall remain valid until the issue of the Performance Certificate, and the Contractor shall extend its validity as necessary to maintain continuous cover until that date. The Employer shall return the Performance Security to the Contractor within twenty-one days of the issue of the Performance Certificate.

PART D — AMENDMENTS RELATING TO CLAUSE 8 (COMMENCEMENT, DELAYS AND SUSPENSION)**D.1 — Monsoon Period Restriction**

Sub-Clause 8.4 is supplemented as follows. The Parties acknowledge that the river is subject to a seasonal rise in water level and flow between 1 June and 30 September in each year of the Contract period (the "Monsoon Period"). Save with the prior written consent of the Engineer, the Contractor shall not carry out piling, pile-cap construction, cofferdam work, or any other work below the normal water level of the river during the Monsoon Period. This restriction is a known and foreseeable condition of the Site as at the date of the Letter of Acceptance, has been allowed for by the Contractor in its programme and pricing, and does not of itself constitute a cause of delay entitling the Contractor to an extension of time under Sub-Clause 8.4.

D.2 — Adverse Weather Event

Sub-Clause 8.4 is further supplemented as follows. Notwithstanding Part D.1 above, if rainfall recorded at the Site rain gauge, or in the absence of a reliable Site reading, at the nearest gauge operated by the Suvarna District Water Resources Department, exceeds 100 millimetres in any continuous twenty-four hour period, and the Contractor demonstrates that the Works were thereby delayed to an extent, or in a manner, beyond what could reasonably have been anticipated having regard to the Monsoon Period restriction in Part D.1 (an "Adverse Weather Event"), the resulting delay shall be a cause of delay for the purposes of Sub-Clause 8.4(b), subject to the Contractor giving notice and particulars in accordance with Sub-Clause 20.1.

D.3 — Delay Damages

Sub-Clause 8.7 is supplemented as follows. The rate of delay damages referred to in Sub-Clause 8.7 is 0.05 per cent of the Contract Amount for each day of delay, and the maximum amount of delay damages payable under Sub-Clause 8.7 is 10 per cent of the Contract Amount, as stated in the Contract Data.

PART E — AMENDMENTS RELATING TO CLAUSE 13 (VARIATIONS AND ADJUSTMENTS)**E.1 — Approval Threshold for Variations**

Sub-Clause 13.1 is supplemented as follows. Where the Engineer's estimate of the value of a proposed Variation exceeds five hundred thousand Vantaran Dollars (VTD 500,000), the Engineer shall not issue an instruction to carry out that Variation without the prior written consent of the Employer. The Engineer shall seek such consent promptly upon forming the estimate referred to above, and shall keep the Contractor informed, upon request, of the status of that approval, but the time taken to obtain the Employer's consent under this Part E.1 shall not, of itself, relieve the Contractor of any obligation to give notice under Sub-Clause 20.1 in respect of the delay or cost consequences of the Variation once instructed.

E.2 — Engineer's Response Period

Sub-Clause 13.3 is supplemented as follows. The Engineer shall respond to a proposal submitted by the Contractor under Sub-Clause 13.3 within fourteen days of receipt, either instructing the Variation, confirming that it is not to proceed, or requesting a revised proposal, failing which the Contractor may by notice to the Engineer treat the proposal as under continued consideration and request a response within a further seven days.

PART F — AMENDMENTS RELATING TO CLAUSE 14 (CONTRACT PRICE AND PAYMENT)**F.1 — Retention**

Sub-Clause 14.3 is supplemented as follows. Retention shall be deducted at the rate of five per cent from each amount otherwise due, until the cumulative amount retained reaches the Limit of Retention Money stated in the Contract Data, being five per cent of the Contract Amount, after which no further retention shall be deducted.

F.2 — Payment Timing

Sub-Clause 14.7 is replaced with the following. The Engineer shall issue an Interim Payment Certificate within twenty-one days of receiving a Statement submitted in accordance with Sub-Clause 14.3. The Employer shall pay the Contractor the amount certified within fifty-six days of the date of the Statement to which the certificate relates. Financing charges on any amount not paid within this period shall accrue at the rate stated in the Contract Data.

PART G — AMENDMENTS RELATING TO CLAUSE 20 (CLAIMS)**G.1 — Confirmation of Notice Period**

Sub-Clause 20.1 is confirmed as unamended by these Particular Conditions. For the avoidance of doubt, the twenty-eight day period for giving notice of a claim under Sub-Clause 20.1 applies to every claim arising under the Contract, including a claim arising from an Adverse Weather Event under Part D.2, a Variation under Clause 13, or any other cause, and time runs from the date the Contractor became aware, or ought reasonably to have become aware, of the event or circumstance giving rise to the claim, and not from any later date.

[END OF PARTICULAR CONDITIONS]